

Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd. v. Riyasat Ali and others

High Court of Judicature at Allahabad · Single Judge · 16 February 2026 · Writ - C No. 45953 of 2025 · **Notice issued to the claimant; counter in six weeks; listed thereafter. Permanent Lok Adalat award not decided.**

HEADNOTE

A licensee's writ challenging the award of the Permanent Lok Adalat, Rampur dated 10.7.2025 on a disputed electricity bill was found to require consideration. On a perusal of the award the Court recorded that no conciliation under Section 22-C(7) of the Legal Services Authorities Act, 1987 had been undertaken before the Permanent Lok Adalat proceeded to adjudicate on merits, and that the claimant had a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed bill which was not resorted to before approaching the Permanent Lok Adalat. Notice issued to respondent no.1; counter-affidavit within six weeks; listed thereafter. The award is neither quashed nor stayed.

FACTUAL SUMMARY

The Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd. filed this writ petition challenging the award of the Permanent Lok Adalat, Rampur dated 10 July 2025 in PLA Suit No. 57 of 2022. The claimant, respondent no.1 Riyasat Ali, had disputed the genuineness of a bill raised by the licensee and approached the Permanent Lok Adalat. Counsel holding brief for the petitioner submitted that after exchange of pleadings the Permanent Lok Adalat framed issues and decided the dispute without conciliation, relying on *Canara Bank v. G.S. Jayarama*. Standing Counsel appeared for respondent nos. 2 and 3. The Court issued notice to respondent no.1 returnable at an early date, with steps by registered or speed post within a week, and called for a counter-affidavit within six weeks.

HOLDING-UNITS

INTERPLAY · LSAA1987::22-C(8)

Conciliation under s.22-C is a mandatory step before a Permanent Lok Adalat may adjudicate on merits

QUESTION

May a Permanent Lok Adalat, after exchange of pleadings, frame issues and decide an electricity-bill dispute on merits without first attempting conciliation under Section 22-C?

HOLDING

The Court did not finally decide. It recorded that *Canara Bank* holds conciliation under Section 22-C to be mandatory and that Section 22-C(8) operates only once an agreement under Section 22-C(7) has failed. On a perusal of this award, no conciliation proceeding under Section 22-C(7) had been undertaken before the Permanent Lok Adalat proceeded to adjudicate on merits. That finding, with the unused Clause 6.5 remedy, was treated as a reason the matter requires consideration. Notice issued. ¶ 3-5

FLAG Interlocutory listing order. Award not quashed or stayed. *Canara Bank* is cited as 2022 LiveLaw (SC) 499; the fingerprint has no Indian Kanoon doc-id.

HOLDING-UNIT · UP-2005::6.5

Disputed bill — Clause 6.5 remedy not exhausted before the Permanent Lok Adalat

QUESTION

Where a consumer disputes the genuineness of a licensee's bill, must that dispute first be taken under Clause 6.5 of the Supply Code before a Permanent Lok Adalat may be approached?

HOLDING

The Court did not finally decide whether Clause 6.5 bars or conditions Permanent Lok Adalat jurisdiction. It recorded that the claimant had disputed the genuineness of the bill, against which he had a remedy under Clause 6.5 which was not resorted to before approaching the Permanent Lok Adalat, and treated that as a further reason the writ requires consideration. ¶ 4-5

FLAG Interlocutory. Not a relegation or disposal. The Court cited Clause 6.5 only, not 6.5(b) or 6.5B.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Interlocutory observation only: a consumer who disputed the genuineness of the licensee's bill had a Clause 6.5 remedy that was not used before approaching the Permanent Lok Adalat. The Court issued notice; it did not relegate or quash. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT AWARD DATED 10.7.2025 IS TO BE QUASHED FOR WANT OF CONCILIATION UNDER SECTION 22-C
The Court recorded that no 22-C(7) conciliation had been undertaken and issued notice. The award is not set aside. ¶ 4-8

NOT DECIDED — GENUINENESS AND MERITS OF THE BILL RAISED BY THE LICENSEE
Not examined. Recorded only that the claimant had disputed genuineness. ¶ 4

NOT DECIDED — WHETHER CLAUSE 6.5 OUSTS OR CONDITIONS PERMANENT LOK ADALAT JURISDICTION OVER A BILL-GENUINENESS DISPUTE
Noted as an unused statutory remedy; not decided as a jurisdictional bar. ¶ 4

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Canara Bank v. G.S. Jayarama</i> 2022 LiveLaw (SC) 499 Supreme Court	Conciliation proceedings under Section 22-C of the Legal Services Authorities Act, 1987 are mandatory. Section 22-C(8) comes into effect only once an agreement under Section 22-C(7) has failed; a Permanent Lok Adalat cannot skip conciliation and adjudicate on merits, including where a party is absent (paras 26–27 as quoted).	Relied on by the petitioner. Paras 26–27 reproduced. The Court then recorded that this award showed no 22-C(7) conciliation before merits adjudication, and issued notice. ¶ 3-4	Petitioner	Relied on